

The Motion was served on Defendant as well as the Plaintiff.

The Motion is unopposed.

No trial date has been set.

Disposition

Motion to be relieved is granted.

Counsel for Defendant to file order.

8. 9:00 AM CASE NUMBER: L25-09990

CASE NAME: WELLS FARGO BANK, N.A. VS. NICHOLAS DELUCA

***HEARING ON MOTION FOR DISCOVERY FOR AN ORDER DEEMING THE TRUTH OF THE MATTERS SPECIFIED IN PLAINTIFF'S REQUEST FOR ADMISSIONS AS ADMITTED
FILED BY: WELLS FARGO BANK, N.A.**

TENTATIVE RULING:

Background

Plaintiff filed Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion), along with a Declaration and Memorandum.

Plaintiff attached the particular facts at issue in their Exhibit One - Request For Admissions Propounded On Defendant, Set One, ("Admissions") - to their Declaration.

Plaintiff attached a proof of service, indicating email service to Defendant's mailing address of record.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

Disposition

The court grants Plaintiff's Motion.

The Admissions at issue in Exhibit One of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order.

9. 9:00 AM CASE NUMBER: L25-12428

CASE NAME: VAN DE POEL & LEVY LLP VS. ANIL YADAV

**HEARING ON DEMURRER TO: IN THE ALTERNATIVE MTC MEDIATION AND ARBITRATION WITH MTS
FILED BY: YADAV ENTERPRISES, INC.**

TENTATIVE RULING:

Defendant has filed a Motion requesting the court to compel arbitration, but has also, in the alternative, Demurred to the Complaint.

Defendant's request was timely noticed. It is unopposed.

Background

The instant matter stems from a dispute over legal fees, where Plaintiff had performed legal services for Defendant in the case of Helmsman Management Service versus Yadav Enterprises.

The crux of the lawsuit is that Plaintiff alleges that Defendant has breached the fee agreement.

Defendant, in their Motion, contends that the agreement calls for mediation, followed by arbitration, before any litigation in court.

Defendant, in the Declaration attached to the Motion, refers to emails they sent to Plaintiff, in which they expressed their intent to ask the court to compel mediation and arbitration.

The Fee Agreement is apparently reflected in Exhibit B to the Motion. Without listing the language explicitly, Paragraph 9 quite clearly calls for the parties to first attempt to resolve any fee disputes through mediation; if that proves unsuccessful, arbitration is the next step. There doesn't appear to be any term in the agreement that requires either party to formally request mediation of the other party to trigger the process.

Analysis

In the instant matter, the intent of the term of the agreement covering fee disputes is quite clear: Parties need to start with mediation.

The court does not feel that the Demurrer is ripe for decision at this point, so will not rule on it.

Disposition

Defense's Motion to compel the mediation and arbitration process is granted.